

fully worthy of the censure before given, in all points.

Lord Hobart, Chief Justice of the Common Pleas. Mr. Attorney hath very worthily and like himself, according to his place, brought this man into this court, to give answer for the greatest and most outrageous offence that of this kind hath been committed; in which case, I will first tell you, what I do not question, and then what I do question.

For the first, Petitions may be exhibited to the king without controversy; nay, in some cases they must be exhibited; and God forbid, that any man's way should be locked up, or that any subject should be barred of access to his majesty; for when appeals fail, and when ordinary remedy is wanting, so that there is no judge above the highest judge; yet, you may still resort unto your sovereign for extreme remedy: this is proper to a king, 'Cessas regnare, si cessas judicare;' for it is an inherent quality to his crown. So that without controversy a man may petition against a sentence; for God forbid, that we that are judges, should draw that privilege to ourselves, to give sentence, and not to hear it examined. But it is true, it must be presented as a supplication, and you must go formally to work: ordinarily you must go to the proper courts of justice; if that fails, the extraordinary course is open by the king: and this is no more than to shew to his majesty, how you find yourself grieved, and then remit the cause and form to the king's wisdom.

But now see what this man hath done, he hath made neither the matter nor form of a petition. First, for matter, he pretends, that is not saying that my lord-chancellor hath expressly infringed two decrees, when he hath done nothing, only crossed an order, than which, there is nothing more common, for they are but interlocutory, and not definitive.—And for form, this is no petition, no book, as he would call it, but an express, peremptory and audacious libel. Then the manner offends yet more: for whereas a supplication imports, that a man should speak it upon his knees, for as it is in some realness, men attempt nothing against law, but they must do it with a rope about their necks: so that he that goeth about to attempt any thing against a decree, he doth it with a rope of the king's censure about his neck: but mark the carriage of this man, how insolently he proceeds in this case!

First, for the king, as hath been well observed, he saith, 'assurgat Rex;' as if he should bid the king arise and take revenge.

Therefore for the Decree, he saith, that the foundation of it came from hell: if that be so, then this sentence must needs be hellish, when he falls upon a poor man, the master of the rolls: I call him poor man, because he is not living to answer for himself, but yet he was a worthy minister of justice, (for I had much cause to know him) and he was of as much dexterity and integrity, as ever man that sat in his place, and I believe the chancery will find want of such a man. But not content with

this, he scorns my lord-chancellor's courtesies, and carries himself, as if he would trample all under foot.

So much for the manner: as for the matter, it is odious: the person with whom he hath to do, is the principal officer and magistrate of justice in the kingdom, one that hath the nomination of all the justices of peace, and the principal that names all the sheriffs: one that keeps and carries the seal, and sits chief judge in this court, and sole judge in the chancery.—And shall we think that this man is bought and sold to corruption, to injustice, to murder? What more tends to the king's dishonour, than that he should place in the judicature such an unworthy man? a man infinitely the more wronged, because he deserves his place, as well as any man that went before him: and yet his last predecessor was very excellent, and deserved no small commendations. But Wraynham I condemn, as a man barbarous both toward the living and the dead: wherefore, there is a justice and tribute due to the master of the rolls deceased. I would have mention made of it in the decree, and with that addition to the sentence, I concur in all things with the president of the court.

Sir Edward Mountague, Lord Chief-Justice. My lords, it is a true saying, 'Judicium non redditur nisi in invitum.' For I yet never saw any man sit down satisfied with a sentence that went against him. I would not so far have blamed Wraynham as to have censured him for complaining to the king: yet this restraint I find in law, which any man may see in king Edgar's law. "Let no man complain to the king in matters of variance, except he cannot have right at home, or that right be too heavy for him. Then let him complain to the king." Whereby it is meant, that if the laws be so strict, he shall complain in a court of equity to the king himself. Then, to complain is not denied to any man, for all justice comes from the king, and though he distribute his justice to be ministered in several courts, yet the primitive power resides still in his person. Therefore, to the justice of his majesty may any subject have resort: but this must be humbly as a petitioner, not as Mr. Wraynham hath done here, who is not a suitor, but a censurer: and doth not complain, but proudly rails upon a high judge.

Can you, Mr. Wraynham, charge your judge with corruption, through fear or affection? (for I make them both alike;) Spare not the chief judge nor highest counsellor: I say, spare us not, whenever you can take us. But a judgment is pronounced from the sincerity of our consciences, and warranted by our judgment and learning: shall we then undergo the censure of every suitor? No state, at no time, ever suffered this.—My lords, it lies upon us Judges as a duty, to restrain this boldness: our places as Judges, give us no privilege to do what we list, nor have suitors liberty to speak as they list of judges: God, and order, hath set bounds to both.